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Bill to ban toxics in California looking to gain some traction

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What if California laid down some new deadlines for taking food safety measures the rest of the country has pretty much been ignoring? Would others begin to impose the same restrictions?

That's a question raised by California Assembly Bill 418, introduced by Rep. Jesse Gabriel and Rep, Buffy Wicks. Gabriel and Wicks are both Democrats in California's Assembly, which is controlled by Democrats, 62-18. Democrats also dominate the Senate, 32-8.

Gabriel, D-Encino, and Wicks, D-Oakland haven't yet gotten AB 418 heard by a committee in more than a month since it was introduced. But they've come up with another way to get their bill's attention.

Existing law provides for the regulation of the safety of food products, including adulterated and misbranded food, wholesale food, and food in retail food facilities. They are holding a virtual news conference on Zoom to discuss the legislation.

The event will feature Chef Andrew Zimmern, Senior Consumer Reports Scientist Michael Hanson, and the Environmental Working Group's Scott Faber.

Iris Myers at iris@emg.org is the RSVP contact. The Zoom event will run from 11:15 a.m. to 11:45 a.m. on Thursday, March 16, 2023.

AB 418, commencing Jan. 1, 2025, would prohibit a person or entity from manufacturing, selling, delivering, distributing, holding, or offering for sale, in commerce a food product that contains any specified substance, including, among others, brominated vegetable oil and red dye 3. The chemicals that would be banned include:

a) Brominated vegetable oil (CAS no. 8016-94-2)

(b) Potassium bromate (CAS no. 7758-01-2)

(c) Propylparaben (CAS no. 94-13-3)

d) Red dye 3 (CAS no. 16423-68-0)

(e) Titanium dioxide (CAS no. 13463-67-7)

AB 418 would prohibit any person or entity from manufacturing, selling, delivering, distributing, holding, or offering for sale any food product that holds these substances. Gabriel and Wicks say these chemicals are currently banned by the European Union and many other jurisdictions "due to scientific studies that have demonstrated significant public health harms including cancer and behavioral health issues in children."

Gabriel represents the San Fernando Valley, and Wicks' District 15 includes the cities of Berkeley, Emeryville, Piedmont, Richmond, San Pablo, and El Cerrito in the East Bay.

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